BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **PILOT TRAVEL CENTERS LLC, a Delaware limited liability company d/b/a Pilot Flying J, d/b/a Pilot Company; and DOES 1 through 25, inclusive,** Defendants.	Case No. _____ **COMPLAINT FOR DAMAGES** (1) Violation of Penal Code Section 290.46(j); (2) Wrongful Termination in Violation of Public Policy; (3) Violation of Fair Credit Reporting Act (15 U.S.C. 1681); (4) Violation of ICRAA (Civ. Code 1786 et seq.); (5) Unfair Business Practices (Bus. & Prof. 17200); (6) Intentional Infliction of Emotional Distress; (7) Negligent Infliction of Emotional Distress *[Unlimited Civil]* *[Jury Trial Demanded]*

COMPLAINT FOR DAMAGES

Plaintiff BRENDAN NGEHSI NEWANFORBI (hereinafter "Plaintiff"), appearing in pro per, hereby files this Complaint for Damages against Defendant PILOT TRAVEL CENTERS LLC, a Delaware limited liability company doing business as Pilot Flying J (hereinafter "Defendant" or "Pilot"), and alleges as follows:

NATURE OF THE ACTION

1. This is an action for damages arising from Defendant's willful, knowing, and unlawful use of California Megan's Law Sex Offender Registry information to terminate Plaintiff's employment, in direct and express violation of California Penal Code section 290.46, subdivision (j)(2)(E), which categorically prohibits the use of sex offender registry information for any employment purpose.

2. On December 10, 2025, Defendant extended Plaintiff a written offer of employment for the position of Guest Services Leader at Defendant's Lodi, California Travel Center (Store No. 617), at a starting hourly rate of $24.00, with a $500 sign-on bonus after ninety days, and comprehensive benefits. Plaintiff accepted the offer.

3. On December 15, 2025, Defendant assigned Plaintiff Employee ID 573787 in Defendant's HR system, completed Plaintiff's onboarding, and Plaintiff commenced active employment at the Lodi Travel Center. Plaintiff worked regular shifts and received weekly paychecks from Defendant through the pay periods ending in mid-January 2026.

4. On December 30, 2025, while Plaintiff was a current, active employee, Defendant issued a "Post-adverse action notice" to Plaintiff by email from backgroundcheck@pilottravelcenters.com, stating that Plaintiff's background report "does not meet Pilot Travel Centers LLC (the 'Company') standards" and that the decision was based on a single item: **"REGISTRATION IN CA SEX OFFENDER REGISTRY."**

5. Defendant's own adverse action notice expressly identifies the California Sex Offender Registry as the sole basis for the employment action. California Penal Code section 290.46, subdivision (j)(2)(E), enacted as part of the Megan's Law public-notification framework, unambiguously provides that the use of registry information disclosed under that section "for

purposes relating to ... Employment ... is prohibited." Defendant's background check vendor, Checkr, Inc., included the statutory warning in the consumer report itself.

6. Defendant did not cite any criminal conviction obtained through proper judicial channels. Defendant did not cite any job-related safety concern under the narrow "protect a person at risk" exception of subdivision (j)(1). Defendant cited one thing and one thing only: registry status. The statute makes that unlawful.

7. By this action, Plaintiff seeks actual and compensatory damages for lost wages and benefits, treble damages pursuant to Penal Code section 290.46(k), the maximum civil penalty of $25,000 per violation, general damages for emotional distress and humiliation, punitive damages for Defendant's willful and knowing violation of the statute, and all other relief to which Plaintiff is entitled.

JURISDICTION AND VENUE

8. This Court has jurisdiction over this action under Article VI, section 10 of the California Constitution. The amount in controversy exceeds the jurisdictional minimum of this Court.

9. Venue is proper in San Joaquin County under Code of Civil Procedure section 395, subdivision (a), because Plaintiff resides in Stockton, San Joaquin County; under section 395.5 because Defendant, a corporation doing business in this state, maintains a business establishment (PTC Lodi, Travel Center 617) in San Joaquin County and the acts giving rise to this action occurred in San Joaquin County; and under section 395(a) because the obligation at issue arose in San Joaquin County where Plaintiff performed his employment duties.

PARTIES

10. Plaintiff BRENDAN NGEHSI NEWANFORBI (also known of record as Brendan Ngwa Nforbi) is a natural person and resident of Stockton, San Joaquin County, California. Plaintiff was employed by Defendant as a Guest Services Leader at Defendant's Lodi, California Travel Center from on or about December 15, 2025 until his termination on or about January 2026, arising from the unlawful adverse action notice dated December 30, 2025.

11. Defendant PILOT TRAVEL CENTERS LLC is a Delaware limited liability company doing business as "Pilot Flying J" and "Pilot Company," with its principal place of business in Knoxville, Tennessee, and operating numerous retail travel center locations throughout California, including PTC Lodi, CA, Retail Travel Center 617, located in San Joaquin County, California. Defendant is an "employer" within the meaning of all applicable employment statutes.

STATUTORY AND LEGAL FRAMEWORK

A. California Penal Code Section 290.46 -- Megan's Law Registry Protections

12. California Penal Code section 290.46 governs the public disclosure and permitted use of sex offender registry information under the Megan's Law framework. Subdivision (j)(1) provides that a person is authorized to use information disclosed pursuant to the section only to protect a person at risk. Subdivision (j)(2) then provides that, except as authorized under paragraph (1) or any other provision of law, use of any information disclosed pursuant to the section for purposes relating to specified categories -- including, at subdivision (j)(2)(E), **"Employment"** -- is **prohibited.**

13. The statutory prohibition is categorical and absolute for employment purposes. The Legislature deliberately prohibited the use of registry information for employment decisions to prevent precisely the kind of automatic disqualification that Defendant engaged in here. The only

narrow exception -- using information "to protect a person at risk" under subdivision (j)(1) -- applies only where a specific, identified person is or may be exposed to a risk of becoming a victim of a sex offense by the registrant in the specific context of that job.

14. **Remedies.** Penal Code section 290.46, subdivision (k), provides that any person who uses information disclosed pursuant to the section in violation of the section shall be subject to a civil penalty of not less than ten thousand dollars ($10,000) and not more than twenty-five thousand dollars ($25,000) for each violation. Subdivision (l) further provides that any person who is harmed by a violation of the section may bring a civil action for damages, including treble actual damages, costs, and reasonable attorney fees.

B. The Fair Credit Reporting Act (15 U.S.C. Section 1681 et seq.)

15. The federal Fair Credit Reporting Act ("FCRA") imposes specific duties on employers who use "consumer reports" for employment purposes. Under 15 U.S.C. section 1681b(b)(3), before taking adverse action based in whole or in part on a consumer report, an employer must: (a) provide the consumer a copy of the report; and (b) provide the consumer a written description of the consumer's rights under the Act. An employer who willfully fails to comply with these requirements is liable for actual damages or statutory damages of not less than $100 and not more than $1,000 per violation, punitive damages, and reasonable attorney fees. (15 U.S.C. sections 1681n, 1681o.)

16. An adverse employment action that is based on information the employer is legally prohibited from considering is not a permissible purpose under FCRA, and an employer that relies on such prohibited information acts willfully within the meaning of section 1681n.

C. California Investigative Consumer Reporting Agencies Act (Civ. Code Section 1786 et seq.)

17. The California Investigative Consumer Reporting Agencies Act ("ICRAA") regulates the preparation and use of investigative consumer reports in California. Under Civil Code section 1786.50, any person who willfully fails to comply with the ICRAA is liable for actual damages, punitive damages, and reasonable attorney fees. Any person who negligently fails to comply is liable for actual damages and reasonable attorney fees.

D. California Unfair Competition Law (Bus. & Prof. Code Section 17200 et seq.)

18. California's Unfair Competition Law ("UCL") prohibits any unlawful, unfair, or fraudulent business act or practice. An employment practice that violates Penal Code section 290.46(j) constitutes an "unlawful" business practice under the UCL. The UCL provides for restitution and injunctive relief.

E. Wrongful Termination in Violation of Public Policy

19. Under California common law, an employer may not discharge an employee for a reason that contravenes fundamental public policy. (Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167.) A termination that violates a statute designed to protect a class of persons constitutes a wrongful termination in violation of public policy. The public policy embodied in Penal Code section 290.46(j) -- prohibiting the use of registry information for employment -- is tethered to a statute, is fundamental, is beneficial to the public, and was clearly established at the time of Defendant's conduct. A Tameny claim entitles the plaintiff to compensatory damages, including economic and non-economic damages, and punitive damages where the defendant's conduct is shown to be willful, oppressive, or malicious.

FACTUAL ALLEGATIONS

A. Plaintiff's Background, Financial Hardship, and Application to Pilot

20. Plaintiff is a resident of Stockton, California. Before applying to Defendant, Plaintiff was experiencing severe financial hardship, including the disconnection of his personal telephone for inability to pay the bill. Plaintiff was in urgent need of employment.

21. In or about March 2025, Plaintiff applied to Defendant for the position of Travel Center Operations Manager. On March 10, 2025, Defendant's recruiter, Brian O'Toole, contacted Plaintiff to schedule a phone interview, stating that Plaintiff's "qualifications and experience are a potential fit for our organization." Plaintiff responded the same day providing his availability.

22. In or about November 2025, Plaintiff again applied to Defendant, this time for the position of Travel Center Assistant Manager. On November 10, 2025 and again on November 13, 2025, Defendant's recruiter Brian O'Toole contacted Plaintiff by email to schedule phone interviews, again confirming Plaintiff's qualifications were "a potential fit."

23. On December 1, 2025, Defendant's recruiter attempted to reach Plaintiff by telephone for the scheduled interview but discovered Plaintiff's phone was disconnected. Plaintiff responded by email the same day, disclosing his financial hardship and stating: "Unfortunately, I have fell on hard times financially and I am in need of help. Well, namely I need a job. My phone is disconnected because of this reason." Plaintiff provided an alternative phone number and expressed his strong interest in the position, stating: "Thank you for not giving up on me."

24. On December 3, 2025, Plaintiff applied for the position of Deli Shift Leader I. Defendant acknowledged receipt of the application the same day.

B. The Offer of Employment, Acceptance, and Onboarding

25. On December 10, 2025, Defendant, through Chris W. Kiley (Employee No. 7005),

extended Plaintiff a written, signed offer of employment for the position of Guest Services Leader at PTC Lodi, CA, Retail Travel Center 617, with the following material terms: (a) anticipated start date of December 15, 2025; (b) starting hourly compensation of $24.00; (c) a one-time gross sign-on bonus of $500.00 after ninety days; (d) eligibility for health, dental, and vision benefits; (e) eligibility for Paid Time Off, Parental Leave, Life Insurance, and other benefits; (f) immediate eligibility for the 401(k) plan with employer matching; and (g) weekly pay. The offer was expressly contingent upon receipt of a satisfactory background check.

26. On December 15, 2025, at 6:18 a.m., Defendant's recruiter Brian O'Toole transmitted the formal job offer to Plaintiff with instructions for acceptance. The email stated: "Pilot Company is happy to extend you an offer for you to join its team. I am confident that you will find this position to be a great fit for your career." The email further stated: "Thank you, Brendan, and welcome to Pilot Company."

27. On December 15, 2025, Plaintiff accepted the offer and Defendant completed Plaintiff's onboarding. At 6:20 a.m., Defendant assigned Plaintiff preboarding tasks through its Click Boarding system. At 1:44 p.m., Defendant issued Plaintiff Employee ID 573787, confirmed his assignment to "PTC Lodi, CA, Retail Travel Center 617," and stated: **"Welcome to the Pilot family!"** At 1:45 p.m., Defendant assigned Plaintiff onboarding tasks for completion on his first day.

28. Plaintiff commenced active employment at the Lodi Travel Center on or about December 15, 2025. Plaintiff performed his assigned duties satisfactorily. At no time during Plaintiff's employment did any supervisor, manager, or representative of Defendant raise any concern about Plaintiff's job performance.

C. The Background Check Through Checkr, Inc.

29. Also on December 15, 2025, at 6:18 a.m., Defendant initiated a background check on Plaintiff through its vendor, Checkr, Inc. ("Checkr"), a consumer reporting agency headquartered at 1 Montgomery Street, Suite 2400, San Francisco, California 94104. Plaintiff was directed to complete the background check by December 22, 2025.

30. On December 16, 2025, Checkr sent Plaintiff a reminder to complete the background check. The same day, Plaintiff submitted his information and Checkr confirmed the background check was running with an estimated completion date of December 16-21, 2025.

31. On December 19, 2025, Checkr notified Plaintiff that the background check was "taking longer than expected" and provided an updated estimated completion date of December 28, 2025 through January 2, 2026.

32. The Checkr consumer report (Report ID: 43f3d4df15540eaf0ba009f3) was completed on December 23, 2025 at 3:56 p.m. UTC. The report was generated for the "Requestor Company: Pilot Travel Centers LLC." The report's overall status was **"Consider"** -- not "Clear" and not a disqualifying result. The report contained the following components:

(a) **SSN Trace** -- Complete (December 16, 2025);

(b) **Sex Offender Search** -- Consider (December 16, 2025), identifying a registration in the "CA Sex Offender Registry" under the name "BRENDAN NGEHSI NEWANFORBI" with a date of birth of September 16, 1996;

(c) **Global Watchlist Search** -- Clear (December 16, 2025);

(d) **National Search** -- Complete (December 16, 2025);

(e) **County Searches** -- Clear in all four counties searched (San Joaquin, CA; Washoe, NV; Santa Clara, CA; Sheridan, WY) (December 23, 2025).

33. **Critically, the county criminal searches in all four jurisdictions returned "Clear" -- meaning Defendant's own background report disclosed no criminal convictions.** The only flagged item in the entire report was the sex offender registry listing. The report did not identify any criminal conviction, any pending charge, or any court record of any kind.

34. The Checkr report itself contained a prominent California-specific statutory disclaimer, required by law, informing Defendant that the report "does not guarantee the accuracy or truthfulness of the information as to the subject of the investigation" and that "information generated as a result of identity theft, including evidence of criminal activity, may be inaccurately associated with the consumer who is the subject of the report."

D. Plaintiff Was Already Working and Receiving Paychecks

35. While the background check was pending and after its completion, Plaintiff continued to work regular shifts at the Lodi Travel Center and received weekly paychecks from Defendant, deposited to Plaintiff's Valley Strong Credit Union account as "Salary/Regular Income from Pilot Flying J," including at minimum:

(a) December 19, 2025: $425.67;

(b) December 29, 2025: $915.29;

(c) January 5, 2026: $857.26;

(d) January 9, 2026: $426.11;

(e) January 23, 2026: $48.69 (final, partial paycheck reflecting termination).

36. In total, Plaintiff earned approximately $2,673.02 in gross wages from Defendant before his employment was terminated. Plaintiff was an active, dues-paying, badge-carrying employee of Defendant for approximately five to six weeks.

E. The December 30, 2025 Post-Adverse Action Notice -- The Smoking Gun

37. On December 30, 2025, at 5:10 p.m., Defendant sent Plaintiff an email from backgroundcheck@pilottravelcenters.com with the subject line "Post-adverse action notice - Pilot Travel Centers LLC." The email was marked "Confidential to be opened by addressee only."

38. The notice stated: "Dear Brendan Ngwa Nforbi, We regret to inform you that your report does not meet Pilot Travel Centers LLC (the 'Company') standards." The notice then stated: **"This decision was based in whole or in part on information contained in a report, including the following specific items contained in the report prepared by Checkr, Inc. ... REGISTRATION IN CA SEX OFFENDER REGISTRY."**

39. The notice is Defendant's own written admission, generated by Defendant's own background check department, that the sole identified basis for the adverse employment action was Plaintiff's **registration in the California Sex Offender Registry** -- the precise category of information that Penal Code section 290.46(j)(2)(E) expressly and categorically prohibits employers from using for employment purposes.

40. The notice did not identify any criminal conviction. The notice did not cite any court record. The notice did not allege any job-related safety concern. The notice did not invoke the "protect a person at risk" exception of subdivision (j)(1). The notice cited one item and one item

only: **REGISTRATION IN CA SEX OFFENDER REGISTRY.**

F. Defendant's Knowledge of the Statutory Prohibition

41. Defendant knew or should have known that using sex offender registry information for employment decisions is unlawful in California. The Checkr consumer report delivered to Defendant contained an express statutory warning directed at California employers regarding the limitations on the use of the information. Checkr, as a consumer reporting agency, is legally required to include such warnings precisely to prevent employers from committing the violation Defendant committed here.

42. Defendant is a sophisticated, Fortune 500-level corporate employer operating hundreds of locations across California with a dedicated background check department (backgroundcheck@pilottravelcenters.com) and in-house or outside legal counsel. Defendant had actual or constructive knowledge of the prohibition in Penal Code section 290.46(j).

43. Despite this knowledge, Defendant made the deliberate decision to terminate Plaintiff based solely on registry information. Defendant's conduct was not inadvertent, not the result of confusion, and not the product of a reasonable mistake of law. It was a willful, conscious, and knowing violation of the statute by a large corporate employer with the resources and legal infrastructure to know better.

G. The Devastating Impact on Plaintiff

44. Plaintiff was already in severe financial hardship at the time of hire. As Plaintiff had disclosed to Defendant's own recruiter on December 1, 2025, Plaintiff's telephone had been disconnected due to financial hardship, and Plaintiff was in desperate need of employment. The Pilot job -- with its $24/hour wage, sign-on bonus, benefits, and 401(k) match -- represented a

genuine lifeline for Plaintiff.

45. Instead, Defendant hired Plaintiff, welcomed him to "the Pilot family," put him to work, and then -- fifteen days later, during the holiday season between Christmas and New Year's -- sent Plaintiff an email informing him that he was being terminated because of his registry status. The timing and manner of the termination compounded the injury.

46. As a direct and proximate result of Defendant's unlawful conduct, Plaintiff has suffered and continues to suffer: (a) loss of wages, at a rate of $24.00 per hour for a full-time position, totaling approximately $960 per week or $49,920 per year, continuing from the date of termination; (b) loss of the $500 sign-on bonus; (c) loss of health, dental, and vision insurance benefits; (d) loss of 401(k) retirement benefits, including employer matching; (e) loss of Paid Time Off, Parental Leave, and Life Insurance benefits; (f) severe emotional distress, humiliation, anxiety, and depression; (g) exacerbation of pre-existing financial hardship; (h) damage to Plaintiff's employment record and prospects for future employment; and (i) loss of dignity and the stigma of having been terminated during the holiday season based on registry status.

47. Defendant's conduct was undertaken with willful, conscious, and deliberate disregard for Plaintiff's rights, and was oppressive, fraudulent, and malicious within the meaning of Civil Code section 3294, entitling Plaintiff to punitive damages.

FIRST CAUSE OF ACTION

VIOLATION OF CALIFORNIA PENAL CODE SECTION 290.46(j)
(Unlawful Use of Sex Offender Registry Information for Employment)
(Against Defendant Pilot Travel Centers LLC)

48. Plaintiff incorporates by reference paragraphs 1 through 47 as though fully set forth

herein.

49. California Penal Code section 290.46, subdivision (j)(2)(E), categorically prohibits the use of information disclosed pursuant to the section for purposes relating to "Employment."

50. On December 30, 2025, Defendant took adverse employment action against Plaintiff -- specifically, terminating Plaintiff's employment -- based on information that Plaintiff is registered in the California Sex Offender Registry, as expressly stated in Defendant's own Post-Adverse Action Notice of the same date.

51. Defendant's use of sex offender registry information for the purpose of making an employment decision constitutes a direct, per se violation of Penal Code section 290.46(j)(2)(E). No exception applies. Defendant did not invoke the "protect a person at risk" exception of subdivision (j)(1), and the Guest Services Leader position at a retail travel center does not involve the supervision of children, vulnerable adults, or any identified person at risk.

52. Defendant's violation was willful, knowing, and deliberate. Defendant's background check vendor included the required statutory warning in the consumer report. Defendant, as a sophisticated multi-state employer with a dedicated background-check department, had actual or constructive knowledge of the prohibition.

53. As a result of Defendant's violation, Plaintiff has suffered actual damages including but not limited to lost wages, lost benefits, emotional distress, and humiliation.

54. Pursuant to Penal Code section 290.46(k), Defendant is liable for a civil penalty of not less than $10,000 and not more than $25,000 for each violation. Plaintiff seeks the maximum penalty of $25,000.

55. Pursuant to Penal Code section 290.46(l), Plaintiff is entitled to treble actual damages, costs of suit, and reasonable attorney fees.

SECOND CAUSE OF ACTION

WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY
(Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167)
(Against Defendant Pilot Travel Centers LLC)

56. Plaintiff incorporates by reference paragraphs 1 through 47 as though fully set forth herein.

57. Penal Code section 290.46(j)(2)(E) embodies a fundamental public policy of the State of California: that employers shall not use Megan's Law sex offender registry information to make employment decisions. This public policy is (a) delineated in a constitutional or statutory provision; (b) fundamental; (c) beneficial to the public as a whole, not merely to the individual; and (d) well-established at the time of Defendant's conduct.

58. Defendant terminated Plaintiff's employment in contravention of this fundamental public policy by basing the termination on Plaintiff's registration in the California Sex Offender Registry, as expressly stated in Defendant's own Post-Adverse Action Notice dated December 30, 2025.

59. There is a nexus between the public policy and Plaintiff's termination: but for Defendant's reliance on the prohibited registry information, Plaintiff would not have been terminated. No performance deficiency, no misconduct, and no other lawful ground for termination was ever identified.

60. As a proximate result of Defendant's wrongful termination, Plaintiff has suffered and continues to suffer economic damages including lost wages in excess of $49,920 per year, lost benefits including the $500 sign-on bonus, health insurance, 401(k) matching, and other benefits, as well as non-economic damages including severe emotional distress, humiliation, anxiety, and damage to his employment record and future employment prospects, all in an amount to be proven at trial but in no event less than $500,000.

61. Defendant's conduct was willful, oppressive, and malicious within the meaning of Civil Code section 3294, in that Defendant acted with conscious disregard of Plaintiff's rights by terminating him based on information the statute expressly prohibits employers from using. Plaintiff is entitled to punitive damages in an amount sufficient to deter Defendant and other employers from engaging in similar conduct.

THIRD CAUSE OF ACTION

VIOLATION OF THE FAIR CREDIT REPORTING ACT
(15 U.S.C. Section 1681 et seq.)
(Against Defendant Pilot Travel Centers LLC)

62. Plaintiff incorporates by reference paragraphs 1 through 47 as though fully set forth herein.

63. Defendant procured a "consumer report" within the meaning of 15 U.S.C. section 1681a(d) from Checkr, Inc. for the purpose of evaluating Plaintiff for employment.

64. Defendant used information contained in that consumer report to take adverse action against Plaintiff, specifically terminating his employment based on the sex offender registry listing.

65. Defendant's use of the consumer report to terminate Plaintiff based on information the employer was legally prohibited from considering under state law constitutes a willful violation of the FCRA's requirement that consumer reports be used only for "permissible purposes" under 15 U.S.C. section 1681b. Using legally prohibited information is not a permissible purpose.

66. Upon information and belief, Defendant also failed to comply with the pre-adverse action requirements of 15 U.S.C. section 1681b(b)(3) by failing to provide Plaintiff adequate notice and a reasonable opportunity to dispute the information before taking adverse action.

67. Defendant's violations were willful within the meaning of 15 U.S.C. section 1681n. As a result, Plaintiff is entitled to: (a) actual damages or statutory damages of not less than $100 and not more than $1,000 per violation; (b) punitive damages as the Court may allow; and (c) reasonable attorney fees and costs.

FOURTH CAUSE OF ACTION

VIOLATION OF CALIFORNIA INVESTIGATIVE CONSUMER REPORTING AGENCIES ACT (Civ. Code Section 1786 et seq.)
(Against Defendant Pilot Travel Centers LLC)

68. Plaintiff incorporates by reference paragraphs 1 through 47 as though fully set forth herein.

69. The Checkr report procured by Defendant constitutes an "investigative consumer report" within the meaning of Civil Code section 1786.2(c), as it was prepared by a consumer reporting agency through personal interviews and investigation for the purpose of evaluating Plaintiff for employment.

70. Defendant used information contained in the investigative consumer report to take adverse action against Plaintiff, specifically terminating his employment based on his sex offender registry status.

71. Defendant's reliance on information it was legally prohibited from using for employment purposes under Penal Code section 290.46(j) constitutes a willful violation of the ICRAA. A user of an investigative consumer report who acts on legally prohibited information has not complied with the requirements of the ICRAA for the lawful use of such reports.

72. As a direct and proximate result, Plaintiff has suffered actual damages as set forth herein. Pursuant to Civil Code section 1786.50, Plaintiff is entitled to: (a) actual damages; (b) punitive damages for willful violations; and (c) reasonable attorney fees and costs.

FIFTH CAUSE OF ACTION

UNFAIR BUSINESS PRACTICES
(Bus. & Prof. Code Section 17200 et seq.)
(Against Defendant Pilot Travel Centers LLC)

73. Plaintiff incorporates by reference paragraphs 1 through 47 as though fully set forth herein.

74. Defendant's conduct constitutes unlawful, unfair, and fraudulent business practices within the meaning of Business and Professions Code section 17200 et seq., in that: (a) the termination of Plaintiff based on sex offender registry information violates Penal Code section 290.46(j)(2)(E) and is therefore **"unlawful"**; (b) the termination of an employee who had already been hired, onboarded, and was actively working based on information the employer is legally

prohibited from considering is **"unfair"** because the gravity of the harm substantially outweighs any utility; and (c) the hiring, onboarding, and then termination of Plaintiff based on registry information -- after Defendant's own vendor had warned Defendant about the statutory prohibition -- is **"fraudulent"** in that it is likely to deceive employees into believing they have secure employment when Defendant intends to terminate them on unlawful grounds.

75. Plaintiff seeks restitution and injunctive relief, including an order requiring Defendant to cease using sex offender registry information for employment decisions at all of its California locations.

SIXTH CAUSE OF ACTION

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
(Against Defendant Pilot Travel Centers LLC)

76. Plaintiff incorporates by reference paragraphs 1 through 47 as though fully set forth herein.

77. Defendant's conduct was extreme and outrageous. Defendant: (a) recruited Plaintiff over a period of months, across multiple positions; (b) knew Plaintiff was in severe financial hardship because Plaintiff had disclosed this directly to Defendant's recruiter; (c) extended Plaintiff a written offer of employment with a start date, benefits, and a sign-on bonus; (d) welcomed Plaintiff to "the Pilot family"; (e) assigned Plaintiff an Employee ID and entered him into the company HR system; (f) put Plaintiff to work, had him complete preboarding and onboarding tasks, and paid him weekly paychecks; (g) then, fifteen days after starting -- during the Christmas-to-New-Year holiday period -- sent Plaintiff an email terminating him based on his sex offender registry status, in knowing violation of California law.

78. A reasonable person would find the foregoing course of conduct -- recruiting a financially desperate individual, extending a formal job offer with benefits, commencing employment, welcoming him to the "family," and then terminating him during the holidays based on information the employer is legally prohibited from using -- to be extreme and outrageous conduct exceeding all bounds of decency.

79. Defendant's conduct was undertaken intentionally and with reckless disregard for the probability of causing Plaintiff severe emotional distress.

80. As a direct and proximate result, Plaintiff has suffered severe emotional distress, including but not limited to anxiety, depression, humiliation, loss of sleep, loss of appetite, feelings of worthlessness, and exacerbation of Plaintiff's pre-existing financial distress.

SEVENTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
(Against Defendant Pilot Travel Centers LLC)

81. Plaintiff incorporates by reference paragraphs 1 through 47 as though fully set forth herein.

82. Defendant owed Plaintiff a duty to comply with California law in making employment decisions, including the duty not to use sex offender registry information for employment purposes as prohibited by Penal Code section 290.46(j).

83. Defendant breached that duty by terminating Plaintiff based solely on his sex offender registry status.

84. It was foreseeable that terminating an employee -- particularly one who had disclosed severe financial hardship -- based on information the employer is legally prohibited from using would cause severe emotional distress.

85. As a direct and proximate result of Defendant's negligence, Plaintiff has suffered severe emotional distress as set forth in paragraph 80 above.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully prays for judgment and relief as follows:

A. On the First Cause of Action (Penal Code Section 290.46)

1. For actual damages, including but not limited to lost wages, lost benefits, and consequential damages, trebled pursuant to Penal Code section 290.46(l);

2. For a civil penalty of $25,000 pursuant to Penal Code section 290.46(k);

3. For reasonable attorney fees and costs pursuant to Penal Code section 290.46(l);

B. On the Second Cause of Action (Wrongful Termination)

4. For compensatory damages, including but not limited to lost past and future wages and benefits, in an amount to be proven at trial but not less than $500,000;

5. For general damages for emotional distress, humiliation, and loss of dignity in an amount to be proven at trial;

6. For punitive damages in an amount sufficient to punish and deter Defendant's willful, oppressive, and malicious conduct;

C. On the Third Cause of Action (FCRA)

7. For actual damages or statutory damages of not less than $100 and not more than $1,000 per violation pursuant to 15 U.S.C. section 1681n;

8. For punitive damages as the Court may allow;

9. For reasonable attorney fees and costs;

D. On the Fourth Cause of Action (ICRAA)

10. For actual damages;

11. For punitive damages for willful violations;

12. For reasonable attorney fees and costs;

E. On the Fifth Cause of Action (UCL)

13. For restitution of all wages, benefits, and other compensation Plaintiff would have earned but for Defendant's unlawful conduct;

14. For injunctive relief ordering Defendant to cease using sex offender registry information for employment purposes at all California locations;

F. On the Sixth and Seventh Causes of Action (IIED and NIED)

15. For compensatory damages for severe emotional distress in an amount to be proven at trial;

16. For punitive damages on the Sixth Cause of Action;

G. On All Causes of Action

17. For prejudgment interest at the legal rate from the date of each element of damage;

18. For costs of suit incurred herein;

19. For reasonable attorney fees where authorized by statute;

20. For such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands trial by jury on all issues so triable.

Dated: _____

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff in the above-entitled action. I have read the foregoing Complaint for Damages and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____,

at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI

INDEX OF EXHIBITS

The following exhibits are attached hereto and incorporated by reference:

Exhibit 1 -- Offer Letter dated December 10, 2025, from Chris W. Kiley (Employee No. 7005) to Brendan Ngwa Nforbi for the position of Guest Services Leader at $24.00/hour.

Exhibit 2 -- Email dated December 15, 2025, from Brian O'Toole, Pilot Company recruiter, formally extending the job offer and stating "Welcome to Pilot Company."

Exhibit 3 -- PROD-PRD Pilot Company Confirmation of Employee ID (PILOT_PRD_HCM), dated December 15, 2025, assigning Employee ID 573787 and confirming HR Org Unit: PTC Lodi, CA, Retail Travel Center 617.

Exhibit 4 -- Pilot Company Preboarding Tasks Assigned email, dated December 15, 2025.

Exhibit 5 -- Pilot Company Onboarding Tasks Assigned email, dated December 15, 2025.

Exhibit 6 -- Start Your Pilot Travel Centers LLC Background Check email from Checkr, dated December 15, 2025.

Exhibit 7 -- Reminder: Start Your Background Check email from Checkr, dated December 16, 2025.

Exhibit 8 -- Your Background Check Is Running email from Checkr, dated

December 16, 2025.

Exhibit 9 -- Your Background Check Is Taking Longer Than Expected email from Checkr, dated December 19, 2025.

Exhibit 10 -- Checkr Consumer Report (Report ID: 43f3d4df15540eaf0ba009f3), completed December 23, 2025, for Requestor Company: Pilot Travel Centers LLC, showing Status: "Consider" and flagging "CA SEX OFFENDER REGISTRY."

Exhibit 11 -- Post-Adverse Action Notice from Pilot Travel Centers LLC (backgroundcheck@pilottravelcenters.com), dated December 30, 2025, expressly citing "REGISTRATION IN CA SEX OFFENDER REGISTRY" as the basis for the adverse action.

Exhibit 12 -- Valley Strong Credit Union account statements showing Salary/Regular Income from Pilot Flying J deposits on December 19, 2025 ($425.67); December 29, 2025 ($915.29); January 5, 2026 ($857.26); January 9, 2026 ($426.11); and January 23, 2026 ($48.69 -- final paycheck).

Exhibit 13 -- Email chain between Plaintiff and Brian O'Toole dated December 1, 2025, in which Plaintiff disclosed financial hardship and stated: "Unfortunately, I have fell on hard times financially and I am in need of help. Well, namely I need a job. My phone is disconnected because of this reason."

Exhibit 14 -- Phone Interview scheduling emails dated November 10, 2025; November 13, 2025; and March 10, 2025, establishing Defendant's repeated recruitment of Plaintiff over a period of months.

Exhibit 15 -- Thank You for Applying to Pilot Company email, dated December 3, 2025, acknowledging Plaintiff's application for Deli Shift Leader I.